

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

MICHELLE CHAAR,

Plaintiff,

Index No.:

Plaintiff designates BRONX COUNTY

as the place of Trial.

-against-

The basis of venue is: Location of
Incident and Parties

CITY OF NEW YORK, POLICE OFFICER
OFFICER JOEL A. GOMEZ (Shield No.
015109) and POLICE OFFICER DIGGS,
individually and in their official capacities,

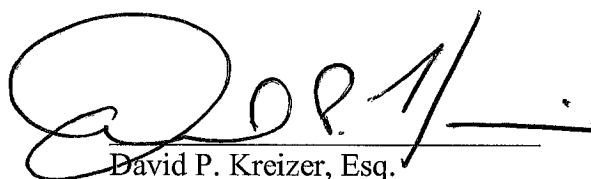
SUMMONS

Defendants

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned to answer the verified complaint in this action and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear to answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

Dated: New York, New York
May 4, 2016



David P. Kreizer, Esq.
SHAW KREIZER, P.A.
Attorney for Plaintiffs
116 West 23rd Street, 5th Floor
New York, NY 10011
(212) 962-0848

Defendants' Addresses:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

POLICE OFFICER JOEL GOMEZ

NYPD – 41st Precinct

1035 Longwood Avenue

Bronx, NY 10459

POLICE OFFICER DIGGS

NYPD – 41st Precinct

1035 Longwood Avenue

Bronx, NY 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

MICHELLE CHAAR,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER
JOEL A. GOMEZ (Shield No. 015109) and
POLICE OFFICER DIGGS, individually and
in their official capacities,

Defendants.

Plaintiff, Michelle Chaar, by and through her attorneys, Shaw Kreizer, P.A., complaining
of the defendants herein, respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorneys fees pursuant to 42 U.S.C. 1983, 1985 and 1988, for the wrongful acts of defendants City of New York and Police Officer Joel Gomez (Shield No. 015109) and Police Officer Diggs as Officers of the New York City Police Department, acting under color of state law and pursuant to their authority, in violation of plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. 1983, 1985 and 1988; by the United States Constitution, including its First, Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws and Constitution of the State of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. 1983, 1985 and 1988, and the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

VENUE

3. The basis of venue is the place of the occurrence and location of the parties.

NOTICE OF CLAIM

4. Plaintiff filed an original Notice of Claim on April 30, 2015 with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

TRIAL BY JURY

5. Plaintiff demands a trial by jury on each and every one of her claims as pleaded herein.

PARTIES

6. At all times relevant hereto Plaintiff was and is a citizen of the United States and was residing in the City of New York and County of Bronx at the time of the incident.

7. At all times relevant hereto defendant The City of New York (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

8. At all times relevant to this action, defendants Police Officer Joel Gomez (Shield No. 015109) and Police Officer Diggs are and were officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

9. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

FACTS

10. On or about February 6, 2015 at approximately 4:00 p.m., plaintiff was walking down Lafayette Avenue in the Hunts Point area of the Bronx in the City and State of New York.

11. At that time plaintiff was in the throes of a significant heroin addiction and was engaging in prostitution in order to support same.

12. As plaintiff was walking down Lafayette Avenue, an unmarked NYPD police vehicle pulled up to her.

13. Defendants Gomez and Diggs, whom were/are narcotics officers, exited said vehicle and approached plaintiff. It should be noted that defendants were familiar with plaintiff and had arrested in her in the past.

14. When plaintiff told defendants that she did not have any drugs or paraphernalia on her person, defendants responded by stating, "Well, we know what you are doing," and placed plaintiff under arrest by handcuffing her and placing her in the back of their police vehicle.

15. Plaintiff was transported to the NYPD's 41st Precinct and placed in the arrest room where she was handcuffed to a bench.

16. After sitting on said bench for approximately one hour, defendant Gomez uncuffed plaintiff and brought her into a private room.

17. While in said private room, defendant Gomez indicated that he went through plaintiff's cell phone was worried about her. He inquired as to whether plaintiff was being forced to give anyone her money and asked her to work as an informant for him. When plaintiff declined to work as an informant, defendant Gomez brought her back to the arrest room and handcuffed her to the bench for a second time.

18. Approximately one-half hour later, plaintiff was uncuffed and brought to said private room by defendant Gomez for a second time. Knowing that plaintiff smoked, defendant Gomez offered her cigarettes, which she accepted.

19. While in said private room Defendant Gomez advised plaintiff that she "was put in for a DAT." Plaintiff advised defendant Gomez that she wasn't sure she would get a DAT as she

was supposed to get a DAT the last time she was arrested but did not, had to go through Central Booking and went to Rikers Island for nine days. Defendant Gomez responded by stating “we’ll have to see what Albany says.” Defendant Gomez then brought plaintiff back to the arrest room for a third time and handcuffed her to said bench.

20. After sitting on said bench for a period of time, defendant Gomez uncuffed and brought plaintiff to said private room for a third time. Once in the private room, defendant Gomez advised plaintiff that she was denied for said DAT. Plaintiff then began crying as she did not want to go to Rikers Island and knew she would get sick and go through significant heroin withdrawal if she did.

21. Once plaintiff started crying, defendant Gomez indicated that he may be able to overwrite the decision and get plaintiff a DAT after all. Believing that defendant Gomez would not overwrite said decision without something in return from plaintiff, she asked him, “What do you want?” – thinking he would want her to “snitch” on someone.

22. Defendant Gomez then got very close to plaintiff and said “You know what I want,” in a suggestive manner. When plaintiff continuously indicated that she didn’t know what defendant Gomez wanted, he repeatedly stated, “You know what I want.”

23. Finally, plaintiff said, “What do you want me to suck your dick or something?” and defendant Gomez said “yes.”

24. Plaintiff who at the time was in the grips of her heroin addiction and was already beginning to feel sick from withdrawal, did not want to Rikers Island at any cost. Accordingly she agreed to perform oral sex on defendant Gomez in exchange for a DAT.

25. Defendant Gomez then advised that he was going to see if he could get her the DAT and advised her that if she didn't follow through on her promise to give him oral sex, that he would hunt her down, that she would not be able to go anywhere in the Bronx and that she would be arrested every time he saw her.

26. Plaintiff was then taken by defendant Gomez back to the arrest room where she was handcuffed to said bench for a fourth time.

27. Thereafter at approximately 8:00-9:00 p.m., defendant Gomez returned to the arrest room, uncuffed plaintiff and handed her a DAT. He also handed her a piece of paper and advised her to write her phone number down on it, which she did. Plaintiff was then let out of the precinct.

28. After being let out of the precinct, she returned to the area where she was staying and charged her phone in a corner store on Lafayette Avenue. Then, because she knew she was going to have to meet up with defendant Gomez shortly, she went to use heroin.

29. When plaintiff retrieved her phone from the corner store, she had three missed calls from defendant Gomez. She called him back and he advised her where to meet him.

30. Defendant Gomez then picked plaintiff up and drove her to nearby industrial area and parked. Plaintiff was then forced to perform oral sex on defendant Gomez.

31. After said oral sex was completed, defendant Gomez advised plaintiff that same was only the first payment for what he had did for her and subsequently dropped her off.

32. At least thirty (30) days have elapsed since said demand and/or claim upon which this action is in part predicated was presented to NYC for adjustment and NYC has neglected and/or refused to adjust and/or make payment.

33. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS
(General Allegations, Fourth, Fifth and Fourteenth Amendments)

34. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

35. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

36. All of the aforementioned acts deprived plaintiffs of the rights, privileges, and immunities guaranteed citizens of the United States by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, including, but not limited to:

- a. the right to be free from unreasonable searches of her person,
- b. the right to be free from unreasonable seizure of her person, including excessive force,
- c. the right to be free from arrest without probable cause,

d. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion or legal justification, and of which detention, plaintiffs were aware and to which they did not consent.

e. the right to be free from the lodging of false charges against them by police officers,

f. the right to be free from abuse of process,

g. the right to be free from deprivation of liberty without due process of law, and

h. the right to equal protection, privileges and immunities under the laws.

45. All of the aforementioned acts were carried out in violation of 42 U.S.C. § 1983.

37. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

38. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

40. By these actions, these Defendants have deprived Plaintiffs of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually and jointly liable.

SECOND CLAIM FOR RELIEF:
FALSE ARREST

41. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

42. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege, or consent.

43. As a result of their false arrests, Plaintiff was subjected to severe emotional distress, humiliation, ridicule, and disgrace and were deprived of their liberty.

44. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the United States Constitution and the Defendants are liable for said damage.

THIRD CLAIM FOR RELIEF:
FALSE IMPRISONMENT

45. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

46. As a result of her false imprisonment, Plaintiff was subjected to severe emotional distress, humiliation, ridicule, mental anguish and disgrace and were deprived of her liberty.

47. All of the aforementioned acts of the Defendants constituted false imprisonment under the laws of the State of New York and the United States Constitution and the Defendants are liable for said damage.

FOURTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

48. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

49. Defendants engaged in extreme and outrageous conduct beyond all possible bounds of decency when they arrested, imprisoned forced plaintiff to perform oral sex.

50. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon Plaintiff.

51. Defendants outrageous conduct did inflict severe distress upon all Plaintiff, which caused Plaintiff to suffer anxiety and mental anguish.

52. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage.

FIFTH CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

53. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

54. The degree of force used by Defendants was excessive, unreasonable, and unwarranted.

55. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable, and unprovoked.

56. As a result of the excessive force and brutality, Plaintiff sustained multiple injuries and endured serious emotional and psychological distress.

57. All of the aforementioned acts of the Defendants constituted excessive force under the laws of the State of New York and the United States Constitution and the Defendants are liable for said damage.

**SIXTH CLAIM FOR RELIEF:
ASSAULT AND BATTERY**

58. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

59. By the aforementioned actions, the Defendants did inflict assault and battery upon Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to plaintiffs and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific bodily injury, pain and suffering, great humiliation, mental anguish, costs, and expenses and were otherwise damaged and injured.

**SEVENTH CLAIM FOR RELIEF:
PRIMA FACIE TORT**

62. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

63. Defendants committed the actions against plaintiff.

64. Defendants knew and/or intended that the aforementioned actions would cause plaintiff physical and psychological harm.

65. Defendants aforementioned actions committed against plaintiff have caused and continue to cause plaintiff physical injuries, pain and suffering, humiliation, depression and emotional distress.

66. Defendants' conduct was unlawful and not justifiable under any circumstances.

EIGHTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY

67. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

68. The acts complained of herein were carried out by the Defendant officers in their capacities as police officers, employees and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said departments.

69. Prior to February 6, 2015, NYC and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the Constitutional rights of persons in NYC, which caused the violation of Plaintiff's rights.

70. It was the policy and/or custom of NYC and NYPD to inadequately and improperly train and supervise its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

71. It was the policy and/or custom of NYC and NYPD to inadequately and improperly investigate complaints of misconduct against police officers filed by persons in police custody, and acts of misconduct were instead tolerated by NYC, including, but not limited to the following incidents: assault and battery, harassment, negligence, intentional infliction of emotional distress and deliberate indifference to medical needs.

72. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff.

73. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

74. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

75. As a result of the above described policies and customs, police officers of NYPD, including the defendant officers, believed that their actions would not be monitored by supervisory officers and that their own misconduct would not be investigated or sanctioned, but instead would be tolerated.

76. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

77. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and were directly responsible for the violation of Plaintiff's constitutional rights.

78. Defendants NYC, as municipal policymakers in the training and supervision of Defendant police officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from deprivation of Liberty without Due process of law in violation of the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

79. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution;
- c. To be protected against violations of civil and constitutional rights;
- d. Not to have cruel and unusual punishment imposed upon them; and
- e. To receive equal protection under the law.

NINTH CLAIM FOR RELIEF:
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

80. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

81. Defendants engaged in extreme and outrageous conduct beyond all possible bounds of decency when they arrested, imprisoned forced plaintiff to perform oral sex.

82. Defendants outrageous conduct did inflict severe distress upon all Plaintiff, which caused Plaintiff to suffer anxiety and mental anguish.

83. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage.

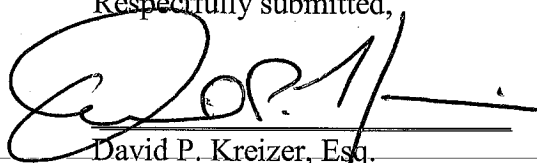
PRAYER FOR RELIEF

WHEREFORE, plaintiff demands judgment against the Defendants as follows:

1. A monetary sum that exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction herein;
2. The costs and disbursements of this action;
3. Attorney's Fees;
4. Punitive Damages; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
May 4, 2016

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'D.P. Kreizer', written over a horizontal line.

David P. Kreizer, Esq.

Shaw Kreizer, P.A.

Attorney for Plaintiff

116 West 23rd Street, 5th Floor

New York, New York 10011

(212) 962-0848

VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

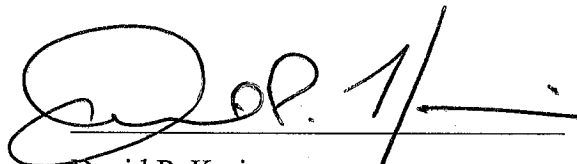
That deponent is the attorney of record for Plaintiffs in the within action; that deponent has read the foregoing Summons and Verified Complaint and knows the contents thereof; that the same is not true to deponents own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this Verification is made by deponent and not by the Plaintiff is that Plaintiff resides in a county other than that in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and the statements of parties and/or witnesses herein.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York

May 4, 2016



David P. Kreizer

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COUNTY OF THE BRONX

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Plaintiff,

-against-

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Defendants.

SUMMONS & VERIFIED COMPLAINT

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MICHELLE CHAAR
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